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JUSTIFICATION REVIEW DOCUMENT
FAR PART 16 EXCEPTION TO FAIR OPPORTUNITY JUSTIFICATION
For Actions Exceeding the Simplified Acquisition Threshold (SAT)

Program/Equipment: Defense Language Institute Foreign Language Center (DLIFLC)
Proofpoint on Demand (Cloud Base) Cybersecurity License and Support

Authority: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

[REDACTED]

[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support an exception to fair opportunity.

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**FAR Part 16 Exception to Fair Opportunity Justification
Under Multiple Award Indefinite Delivery Contracts
For Actions Exceeding the Simplified Acquisition Threshold (SAT)**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC) – Fort Leavenworth, 535 Kearny Ave., Fort Leavenworth, KS 66027

2. Description of Action: The Defense Language Institute Foreign Language Center (DLIFLC) Cybersecurity Team requests a firm-fixed-price contract for Proofpoint on Demand (Cloud Based) Cybersecurity Platform. The Government projects award for March 2025 using fiscal year 2025 Operations and Maintenance, Army (OMA) funds. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: Proofpoint on Demand (Cloud Based) is a cybersecurity tool that helps protect against malware, spam, spoofing and phishing threats through the review of all email traffic. The software grants the Cybersecurity Team the capability to detect, screen for, and identify a variety of malicious or unwanted cyber activity. The tool gives the ability to do advanced threat detection and detailed reporting. This software solution helps protect and support 12,000 users. Proofpoint on Demand allows the Cybersecurity Team to monitor and protect through the below bundled solutions:

a. SPAM: Unsolicited or irrelevant messages, often sent in bulk, typically for advertising or malicious purposes. Commonly associated with email, it can flood inboxes and may contain harmful content.

b. PFPT Enterprise PO – McAfee: A Purchase Order (PO) for McAfee security solutions integrated with Proofpoint (PFPT) enterprise-level services, designed to enhance email protection, threat detection, and data security.

c. PFPT Email DLP: Proofpoint's Email Data Loss Prevention (DLP) tool helps organizations prevent sensitive information from being sent via email to unauthorized recipients, ensuring data privacy and compliance.

d. Remote Syslog Forwarding: A method used to transmit log data from various devices or systems to a centralized syslog server, allowing for easier monitoring, analysis, and troubleshooting of security events.

e. PFPT Platinum Level Support: Premium, top-tier customer support provided by Proofpoint (PFPT), offering the highest level of assistance, including rapid response times, dedicated support agents, and advanced troubleshooting.

The Salient Characteristics document in the paperless contract file captures the specific details on required capabilities for this requirement.

[REDACTED]

[REDACTED]

Expected Contract Line Item

Line #	Quantity	Unit	Product/Part #	Description
0001	1	Job	P1 Bundle	Proofpoint on Demand - Product 5 Years

Base Period: 03/27/2025 to 03/26/2026
Option Period 1: 03/27/2026 to 03/26/2027
Option Period 2: 03/27/2027 to 03/26/2028
Option Period 3: 03/27/2028 to 03/26/2029
Option Period 4: 03/27/2029 to 03/26/2030

[REDACTED]

[REDACTED]

4. Authority Cited: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

5. Reason for Authority Cited:

a. Proofpoint is a Brand Name requirement. Proofpoint offers real-time response to email threats like spam and phishing, adapting to user behavior and using unique code to filter SPAM messages. Proofpoint software licenses are proprietary and are only available from Proofpoint or their authorized resellers. Proofpoint owns the copyrighted source code with all legal rights, privileges, and ownership contained therein. The Proofpoint software products are implemented and configured within DLIFLCs existing architecture and the effort to change to a different solution would not be cost effective.

b. Alternatives: Proofpoint is a COTS cybersecurity software platform that is readily available from authorized resellers. This software is a follow-on brand name purchase of software previously procured and currently installed on the Defense Language Institute's (DLI) network for security protections. Proofpoint's specialized and proprietary email security solution is deeply integrated with the DLIFLC's existing architecture, making it a critical component of its email security strategy. Utilizing another product and forgoing the licensing of these software products would, in effect, prohibit normal business operations on the installation. Only Proofpoint or their authorized resellers have access to the licenses. No other manufacturer that provides detailed information on traffic on top of filtering than Proofpoint, and their team has been able to track and defend the EDU network from malicious actors that would put the organization at great risk.

c. Additional Supporting Information: Competitive pricing for these Information Technology (IT) software products is available through CHES contract vehicles. Utilizing CHES assures the United States Government (USG) will receive a fair price through competition for this software. The only other possibility to potentially increase

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participation and competition would be to extend the response time for submission of quotes from CHESS vendors. However, history shows that the length of response time for a vendor to submit a quote typically does not make much of a difference in increasing further additional vendor participation.

d. Impact if justification not approved: Proofpoint software is copyrighted to a single company and only available for sale through authorized resellers. Its uniqueness is in the code to filter SPAM messages. Utilizing another product in place of Proofpoint would exhaust personnel, both government and contractor to rebuild to replace the architecture with a less effective solution, putting the organization at higher risk and spending resources DLIFLC needs on existing projects. Failure to obtain this software will result in malicious emails entering and leaving the DLIFLC domain since the capability of real-time response to email threats like spam and phishing, adapting to user behavior and using unique code to filter SPAM messages will be weakened. This vulnerability will cause leakage of the most critical email communications between the Civilian and the Military communities at DLIFLC. This will also greatly damage the reputation and computing architecture of DLIFLC. Proofpoint software will prevent copyrighted material violations and/or infringement fines.

6. Actions to Increase Competition: IAW AFARS 51.39.101-90, the Army's Computer Hardware, Enterprise Software and Solutions (CHESS) program, under the Program Executive Office Enterprise Information Systems, is the mandatory source for commercial information technology (IT) hardware and software purchases. This Brand Name requirement will be purchased through the CHESS program with multiple vendors having an opportunity to bid on the requirement. The notice required by FAR 5.201 to synopses is not required due to an exception at FAR 5.202(a)(6).

7. Market Research: The Army's Computer Hardware, Enterprise Software and Solutions (CHESS) is a mandatory source for commercial-off-the-shelf (COTS) IT hardware and software, IT services, and tactical/operational IT hardware requirements in accordance with AFARS, Part 5139, Acquisition of Information Technology and AR 25-1, Army Information Technology. CHESS contracts provide IT products and services that comply with U.S. Army Network Enterprise Technology Command, Army and DOD policy and standards.

Therefore, a Request for Information (RFI) was submitted in CHESS under the ITES-SW2 contract vehicle on 29 January 2025 with closing date on 28 February 2025. Although there are 28 ITES-SW US Army CHESS vendors, only two (2) small business vendors (New Tech Solution Inc and Blazar Technology Solutions) provided quotes. 15 vendors responded with No bid, not authorized reseller, not sufficient time to respond, etc. The remaining vendors did not respond by the closing date of the RFI. Market research revealed that the requirement could be fulfilled through the mandatory source CHESS ITES-SW2 and there is adequate price competition among competitive quotations.

[REDACTED]

[REDACTED]

8. Other Facts: DLIFLC purchased Proofpoint in FY18 on Contract number, W52P1J16D0014 0Q15, dated 22 March 2017, with a performance period of 3 years. In FY2020, Proofpoint was purchased again under Contract number GS35F0119Y/W9124N20F0008, dated 24 March 2020, with a performance period of 5 years.

Procurement History:

Contract: GS35F0119Y / W9124N20F0008
Contractor: N2GRATE Government Technology Solutions
Award Date: 24 MAR 2020
Competitive Status: Limited Sources, Brand Name
Authority: FAR 8.405-6(b)(1)

Contract: W52P1J16D0014 0Q15
Contractor: Iron Bow Technologies
Award Date: 22 MAR 2017
Competitive Status: Full and Open Competition under CHES

[REDACTED]

[REDACTED]

9. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

10. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using price analysis. As a part of this basis, certified cost or pricing data will not be required and the following exception applies (FAR 15.403): Prices that will be agreed upon are based on adequate price competition; a commercial item is being acquired.

[REDACTED]

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Approval

Based on the foregoing justification, I hereby approve the procurement of Proofpoint on Demand (Cloud Base) Cybersecurity Software License and Support for the Defense Language Institute at Presidio of Monterey, CA using an exception to fair opportunity pursuant to the authority of Federal Acquisition Regulation Part 16.505(a)(4) – “Restricting consideration to an item peculiar to one manufacturer.” The estimated value of the contract is [REDACTED] for five years with the period of performance consisting of a base plus four option years, from March 2025 through March 2030. This approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

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